

Kathryn N. Nester (UT #13967)
NESTER LEWIS PLLC
40 S 600 E
Salt Lake City, UT 84102
Telephone: 801-535-4375
Email: kathy@nesterlewis.com

Richard G. Novak, *pro hac vice*
RICHARD G. NOVAK, APLC
65 North Raymond Avenue, Suite 320
Pasadena, CA 91103
Telephone: 626-578-1175
Email: richard@rgnlaw.com

Michael N. Burt, *pro hac vice*
LAW OFFICE OF MICHAEL BURT PC
1000 Brannan Street Suite 400
San Francisco, California 94103
Telephone: 415-522-1508
Email: MB@michaelburtlaw.com

Staci Visser (UT #14358)
BROWN, BRADSHAW & MOFFAT
422 N 300 W
Salt Lake City, UT 84103
Telephone: 801-532-5297
Email: staci@brownbradshaw.com

Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S MOTION TO CLOSE PORTIONS OF THE APRIL 17, 2026 EVIDENTIARY HEARING Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through counsel of record, hereby files this motion seeking to close portions of the evidentiary hearing scheduled for April 17, 2026 on *Mr. Robinson's Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom* (Dkt. 305) ("*Motion to Exclude Cameras*").

Specifically, Mr. Robinson seeks to take evidence in a closed setting regarding the unfairly prejudicial and misleading media coverage and the improper statements of government officials in order to avoid republicizing the same. Mr. Robinson also asks this Court to take evidence regarding the privacy violations detailed in the *Motion to Exclude Cameras* in a closed setting to, again, avoid reiterating the violative material. Finally, should there be any discussion or evidence from the closed portion of the December 11, 2026 hearing, this should be taken in a closed setting.

MEMORANDUM

Mr. Robinson seeks to close portions of the evidentiary hearing scheduled for April 17, 2026. This request is based upon the "realistic likelihood of prejudice" to Mr. Robinson's right to a fair trial and reliable penalty phase if this Court takes all evidence on Mr. Robinson's *Motion to Exclude Cameras* in open court. *See Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 523 (Utah 1984).

On January 16, 2026, Mr. Robinson filed his *Motion to Exclude Cameras* and exhibits, and concurrent with that filing, filed a *Motion to Classify* the *Motion to Exclude Cameras* as private pursuant to Utah Rule of Judicial Administration 4-202.04(3). *See* Dkt. 310 ("*Mtn Classify*"). In the *Motion to Classify*, pending for this Court's determination at the hearing scheduled for March 13, 2026, Mr. Robinson provided four reasons this Court should classify the filing as private.

First, the *Motion to Exclude Cameras* "compiles a substantial number of electronic media references that evidence violations of Utah state law, violations of this Court's decorum orders, and

overall threaten Mr. Robinson’s constitutional rights to due process, to a fair and impartial jury, to counsel, to be free from unreasonable searches and seizures, and to be free from cruel and unusual punishment, as required by the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and article I, sections 7, 9, 10, 12, and 14 of the Utah Constitution.” *Mtn Classify*, at 2. As a result, Mr. Robinson has asked this Court to find that republication of the litany of unfairly prejudicial references within the motion would negatively impact his right to a fair trial and reliable penalty phase by compounding the very issues sought to be addressed by the *Motion to Exclude Cameras*. *Id.*; U.S. Const. amends VI, VIII, XIV; Utah Const. art. I, §§ 9, 12.

Second, Mr. Robinson asked this Court to find that the republication of the significant number of harmful media materials would materially impact the integrity of the proceedings. *Mtn Classify*, at 2-3. This was demonstrated by the fact that media representatives have already used public information and filings obtained from the criminal case to question government officials involved in the case. *Id.* Such “conversational” interplay between court filings and those whose statements were provided as evidence invites third party influence in the proceedings, thereby negatively impacting the integrity of the proceedings.

Third, Mr. Robinson included references in the *Motion to Exclude Cameras* to the private portion of the December 11, 2025, hearing transcript that is in the process of being redacted by the Court Reporter pursuant to this Court’s order issued February 23, 2026. *See* Dkt. 416 (*Standing Order on Redacting and Filing Transcripts*). Where the transcript is currently sealed, Mr. Robinson asked this Court to classify the *Motion to Exclude Cameras* as private.

Finally, Mr. Robinson argued that the *Motion to Exclude Cameras* “raises several points... concerning the publication of the private information of individuals involved in this case by state and federal government officials in violation of GRAMA and federal rules.” *Mtn Classify*, at 3-4.

The points raised in the *Motion to Exclude Cameras* necessarily require descriptions of the private information that was inappropriately disclosed. Mr. Robinson argues that the harm created by the initial publication should not be perpetuated in a public filing. *Id.*

All of these same arguments apply with equal weight to the evidentiary hearing scheduled for April 17, 2026 on the *Motion to Exclude Cameras*. In the weighing of interests required in determining if a proceeding (or portions of a proceeding) may properly be closed, this Court should find that Mr. Robinson's right to a fair trial and reliable penalty phase overcome the qualified right of access to the upcoming evidentiary hearing. *See State v. Archuleta*, 857 P.2d 234, 237 (Utah 1993) ("Even if a qualified right of access to a criminal proceeding or judicial records does exist, that right is not absolute."); *Globe Newspaper Co. v. Superior Court for Norfolk County*, 457 U.S. 596, 606 (1982) ("Although the right of access to criminal trials is of constitutional stature, it is not absolute."). Likewise, the Court should consider and find that the privacy interests of individuals whose private information will be discussed, and the preservation of the integrity of the proceedings, are interests that outweigh the interest in public access. *See Archuleta*, 857 P.2d at 240-41 ("Competing interests include protecting the integrity of ongoing investigations and proceedings, the privacy of those involved, and the defendant's right to a fair trial." (internal quotation marks and footnotes omitted)).

First, Mr. Robinson intends to present evidence demonstrating the harmful and prejudicial media coverage of this case thus far. While there is simply not enough time to present all of what is referenced in the *Motion to Exclude Cameras*, the compilation anticipated will highlight the most egregious and most concerning media coverage impacting Mr. Robinson's case. Highlighting this evidence in a public hearing will serve both to republish and emphasize the concerning coverage, creating "exponential harm by increasing speculation and adding unwarranted credulity to the

information where there should be none.” Dkt. 344, at 5 n.3 (*Defendant Tyler James Robinson’s Reply in Support of Motion to Classify Motion to Exclude*). Such republication threatens Mr. Robinson’s right to a fair trial and reliable penalty phase by recirculating unduly prejudicial (and in some instances incorrect) coverage out into the potential jury pool, becoming part of the ever-growing narratives existent in both primary and secondary coverage of the case. As such, this Court should take the evidence detailing the harmful and prejudicial media coverage in a closed setting to preserve Mr. Robinson’s right to a fair trial and reliable penalty phase.

Second, the Court should take the evidence of the harmful and prejudicial media coverage in a closed setting to preserve the integrity of the court proceedings. Republication of the statements from media pundits’ and government officials, in particular, will invite response to the issues being litigated from those individuals. The judgment and commentary from those individuals, in direct response to what is publicized from the court proceedings, threatens to supplant the judgment of this Court in the eyes of the potential jury pool before this Court has even had the opportunity to rule on the important constitutional claims raised in the *Motion to Exclude Cameras*. In order to protect the integrity of the proceedings, this Court should take the evidence detailing the statements from media pundits’ and government officials in a closed setting.

Third, there may be discussion of comments and events that occurred in the closed setting on December 11, 2026. While Mr. Robinson’s counsel diligently moves forward with the process for the filing of a redacted version of this transcript, at the time of this filing, the closed session of that hearing remains sealed. For this reason, the Court should order any discussion of comments from the closed session on December 11, 2026, to be heard in a closed setting.

Finally, Mr. Robinson intends to provide the Court with evidence detailing the private information he argues was publicized by government officials in violation of Utah and federal law,

and how that improper publication impacted the particular individuals whose information is at issue. It is anticipated that the individuals will offer testimony as to these facts and, as witnesses both to the issues presented and potentially future hearings, their safety and privacy are paramount. Thus, the evidence regarding the privacy violations detailed in the Motion to Exclude Cameras should be taken in a closed setting.

Mr. Robinson is not seeking to close the evidentiary hearing on April 17, 2026 in its entirety. Mr. Robinson is seeking closure of particular portions of the hearing to prevent republication of harmful, unduly prejudicial, misleading and private information. Such limited closure balances the interests of public access with Mr. Robinson's right to a fair trial and reliable penalty phase, preserving the integrity of the proceedings, and protecting the relevant privacy interests. There is no reasonable, less restrictive, alternative to the limited closure because allowing public and media presence defeats the purpose of the requested closure as the unduly prejudicial, harmful, misleading, and private information will still ultimately be republicized by those present. Limited closure is the appropriate remedy to protect Mr. Robinson's rights and these proceedings.

CONCLUSION

Based upon the foregoing, Mr. Robinson respectfully requests that the portions of the evidentiary hearing scheduled for April 17, 2026 identified herein be closed to the public and the media.

RESPECTFULLY SUBMITTED this 26th day of February, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing **DEFENDANT TYLER JAMES ROBINSON'S MOTION TO CLOSE PORTIONS OF THE APRIL 17, 2026 EVIDENTIARY HEARING** was served via the Court's electronic filing system on the 26th day of February, 2026, which served all attorneys of record.

I also certificate that on the 26th day of February, 2026, a copy of the foregoing was emailed to the following counsel for their respective media entities:

Jeffrey J. Hunt (5855)
David C. Reymann (8495)
Carissa A. Uresk (18114)
PARR BROWN GEE & LOVELESS
101 South 200 East, Suite 700
Salt Lake City, Utah 84111
Telephone: (801) 532-7840
jhunt@parrbrown.com
dreymann@parrbrown.com
curesk@parrbrown.com

C. Michael Judd (14692)
PARSONS BEHLE & LATIMER
201 South Main Street, Suite 1800
Salt Lake City, Utah 84111
Telephone: (801) 532-1234
mjudd@parsonsbehle.com

/s/ Staci Visser